Shri H.V. Kamath that this code will be common to all Indians. But the Muslims were exempted from it in spite of the fact that assurance to that effect was given in the Parliament. Actually, Muslim women need the protection of a common civil code more than anybody else. Anybody who knows anything about Mohmedan law will bear me out. Yet they are being exempted with dangerous results. I heard of a case in which somebody wanted to marry a second time became a Muslim and got a second wife. These things are happening again and again. So we are opposed to it. Civil code must be common to all irrespective of caste or creed and so long as Government does not do it, we will be justified in calling the Congress a communal party and not a nationalist party.'[129]

Fifty-three years after Madhok's call to end triple talaq as a gender-justice initiative, the BJP evoked the same argument in Parliament when it passed a legislation making the practice illegal. As Modi tweeted on the day the Triple Talaq Bill was passed in Parliament, 'An archaic and medieval practice has finally been confined to the dustbin of history! Parliament abolishes Triple Talaq and corrects a historical wrong done to Muslim women. This is a victory of gender justice and will further equality in society. India rejoices today!'[130]

Could Muslims Be Members of the Sangh?

The right wing was no more a monolith than the liberals were. There were two views on Muslim membership between the hard-line and the liberal wings. The Jan Sangh's answer was, yes, Muslims could be members if they accepted the primacy of Hinduness in the past and its great heroes. 'Those who consider BHARAT MATA from Kashmir to Kanyakumari, as their motherland, who own its great heritage, who own its great heroes. Who own its great past and who want to work for its better future, they make one nation whatsoever their caste, creed or race. Therefore, we do no not bring in the question of religion in the question of nationhood. That is why our doors are open to all.'[131] This is, in fact, one reason why S.P. Mookerjee decided to form the Jan Sangh 'when he failed to persuade his parent organisation Hindu Mahasabha to open its